

Tentative Rulings for Department 503

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Tentative Ruling

Re: ***Simpson v. Brar***
Superior Court Case No. 25CECG05496

Hearing Date: June 4, 2026 (Dept. 503)

Motion: By Defendant to Compel Arbitration

Tentative Ruling:

To continue the hearing to Tuesday, August 11, 2026 at 3:30 p.m. in Department 503. Plaintiff may file a response no later than July 21, 2026. Any response shall not exceed ten pages.

Explanation:

Timeliness

Defendant asserts that the opposition filed by plaintiff is untimely pursuant to Code of Civil Procedure section 1290.6. Here, defendant did not file a true Petition to Compel Arbitration, but rather filed a motion in response to plaintiff initiating a case by filing her complaint. It is not clear whether the general motions statute or the statute for a petition to compel arbitration governs the timing of any opposition here. (See Code of Civ. Proc., §§ 1005, subd. (b), 1290.6; *Correia v. NB Baker Electric, Inc.* (2019) 32 Cal.App.5th 602, 613.) However, courts are authorized to consider late-filed oppositions where there is no prejudice to the moving party. (*Correia v. NB Baker Electric, Inc.*, *supra*, 32 Cal.App.5th at p. 613.) Thus, even if the petition timeline governs, the Court has discretion to consider the opposition here. The Court has considered the opposition.

New Evidence on Reply

"The general rule of motion practice ... is that new evidence is not permitted with reply papers ... [and] should only be allowed in the exceptional case ..." (Jay v. Mahaffey (2013) 218 Cal.App.4th 1522, 1537-1538.) The same is true with new arguments presented for the first time on reply. (See *Mocek v. Alfa Leisure, Inc.* (2003) 114 Cal.App.4th 402, 409—court declined to consider arguments raised for first time in reply brief under rule an issue is waived when not raised in opening brief. See also *Katellaris v. County of Orange* (2001) 92 Cal.App.4th 1211, 1216, fn 4.) However, if the court exercises its discretion to allow new evidence or argument in reply papers, the opposing party must be given an opportunity to respond. (*Alliant Ins. Services, Inc. v. Gaddy* (2008) 159 Cal.App.4th 1292, 1307-1308.) The court is exercising its discretion to consider the new information provided in defendant's reply. As such, the matter is continued to provide plaintiff an opportunity to respond.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

